

said university or his vice-chancellor for the time being should seem fit, without impeachment, molestation, disturbance, or grievance of her the said Queen Elizabeth, her heirs or successors, or any of them, any statute notwithstanding; and which letters patent the said then chancellor, masters, and scholars duly accepted: That, by a certain act of parliament passed in the 13th year of the said Queen's reign, being the act in the second plea mentioned, it was enacted as in that plea mentioned: and it was in and by the same act, amongst other things, further enacted that the letters-patent as aforesaid should from thenceforth be good, effectual, and available in the law to all intents, constructions, and purposes, to the aforesaid then chancellor, masters, and scholars, and to their successors for ever, as amply, fully, and largely as if the same letters-patent had been repeated verbatim in the said act: That, before the committing of the alleged grievances, Thomas Samuel Woollaston and Edward William Blore, then being officers and servants of the said chancellor, masters, and scholars, and by their command, having, upon a certain such scrutiny, search, and inquiry in the aforesaid town and suburbs of Cambridge, found the plaintiff and divers other women assembled together in a certain carriage in company with certain scholars of the said university, in a certain public street in the said town, and then reasonably suspecting the said plaintiff of evil, that is to say, of being in company with the said scholars for idle, dis[530]-orderly, and immoral purposes, had, as such officers and servants, and by such command, arrested and apprehended the plaintiff, and brought her before the defendant, then being the vice-chancellor of the said university, in order for her examination touching and concerning the premises, the said defendant then being the proper officer and deputy of the said chancellor, masters, and scholars in that behalf: Whereupon the defendant, so being such vice-chancellor as aforesaid, did then and there hear and examine the plaintiff, and was thereupon satisfied of the matters aforesaid, and that the plaintiff had so been in company with the said scholars for idle, disorderly, and immoral purposes: wherefore the defendant did then cause the plaintiff to be punished by the imprisonment of her body for a reasonable time in that behalf, to wit, for five days, in the place of confinement in the declaration mentioned, being a fit and proper and convenient place in that behalf: And that the compelling the plaintiff to take off her clothes she was then wearing, as in the declaration mentioned, and to put on and wear the other clothes in the declaration also mentioned, and the taking away of the said first-mentioned clothes as alleged, and the compelling the plaintiff to work and labour as alleged, then were and each of them was a part of the reasonable discipline of the said place of confinement then used and approved of by the defendant, so being such vice-chancellor as aforesaid: which were the several grievances in the declaration mentioned.

The plaintiff joined issue on the first plea. To the second plea she replied as follows:—The plaintiff, as to the defendant's second plea, admits the statutes in that plea mentioned, and that it was enacted by the statute therein first mentioned as in that plea alleged: and for replication to the said second plea the plaintiff takes issue upon the residue thereof. There was a similar replication to the third plea.

[531] The cause was tried before Erle, C. J., at the sittings at Westminster after last Hilary Term, when the facts which appeared in evidence were in substance as follows:—The plaintiff was a milliner and dress-maker residing with her mother, who was a widow, in Dover Street, Cambridge, and, so far as appeared, was a person of irreproachable character. The defendant, the Hon. and Rev. Latimer Neville, is master of Magdalene College, Cambridge, and at the time when the transactions in question took place was vice-chancellor of the university, and also *virtute officii* a magistrate for the borough of Cambridge.

In the latter part of January, 1860, the plaintiff with several other young women also resident in Cambridge were invited to an evening party which was proposed to be given by some young gentlemen, members of the university, at the De Freville Arms, a respectable house of entertainment at the village of Great Shelford, about four miles from Cambridge, for the purpose of celebrating the accession of one of the party to his degree of B.A. An omnibus was hired for the conveyance of the party, with a small band of music, and to bring them back. Information of what was going on having by some means reached the Rev. Edward William Blore, one of the proctors of the university, that gentleman consulted the senior proctor, the Rev. Thomas Samuel Woollaston, and they with their assistants proceeded to Parker's